



EMPLOYMENT TRIBUNALS

Claimant: Mrs H Bannerman
Respondent: The Land Restoration Trust
Heard at: Bury St Edmunds (via CVP)
On: 5 September 2024
Before: Employment Judge Graham
Representation
Claimant: In person
Respondent: Mr T Perry, Counsel

JUDGMENT

1. The Claimant's application for interim relief is refused.

REASONS

Introduction

1. By way of an ET1 claim form presented on 8 July 2024 the Claimant claims that she was automatically unfairly dismissed by the Respondent for making protected disclosures contrary to section 103A of the Employment Rights Act. The Claimant makes other complaints within her ET1.
2. This application for interim relief was presented within seven days of the effective date of termination which was 2 July 2024.
3. The issue I had to determine in relation to this application was whether it appears to me to be likely that on determining this claim a tribunal will be satisfied that:
 - 3.1 There was a protected disclosure; and
 - 3.2 That disclosure was the reason or the principal reason for the Claimant's dismissal.

4. I made clear at the outset that I would not hear any oral evidence as this was not a fact finding hearing but I would decide the application on the basis of the written documents to which I was specifically referred and also the submissions of the parties. I was provided with a bundle of 53 pages from the Claimant, together with an investigation report commentary of 32 pages, as well as a detailed skeleton argument from the Claimant. From the Respondent I received a bundle of 170 pages, witness statements from Alan Carter the Chief Executive and also Ian Betteley the Finance Director, as well as a detailed skeleton argument and a bundle of authorities.
5. I reviewed all of the material I was directed to, including the Respondent's ET3 which had already been filed by the date of today's hearing.
6. The Claimant informed me that she has Asperger's Syndrome and ADHD and I therefore discussed with her what adjustments would assist her. I granted breaks at appropriate stages during the day, and the Claimant was permitted to turn off her camera when the Respondent's counsel was speaking.

The Law

Protected Disclosures

7. The Employment Rights Act 1996 provides:

S. 43B(1) Disclosures qualifying for protection.

(1) In this Part a "qualifying disclosure" means any disclosure of information which, in the reasonable belief of the worker making the disclosure, is made in the public interest and tends to show one or more of the following—

...

(b) that a person has failed, is failing or is likely to fail to comply with any legal obligation to which he is subject,

...

(d) that the health or safety of any individual has been, is being or is likely to be endangered,

...

(5) In this Part "the relevant failure", in relation to a qualifying disclosure, means the matter falling within paragraphs (a) to (f) of subsection (1).

...

S. 43C Disclosure to employer or other responsible person.

(1) A qualifying disclosure is made in accordance with this section if the worker makes the disclosure —

(a) to his employer, ...

8. In **Williams v Michelle Brown AM UKEAT0044/19/00**, HHJ Auerbach set out the test for identifying whether a qualifying disclosure has been made:

"It is worth restating, as the authorities have done many times, that this definition breaks down into a number of elements. First, there must be a disclosure of information. Secondly, the worker must believe that the disclosure is made in the public interest. Thirdly, if the worker does hold such a belief, it must be reasonably held. Fourthly, the worker must believe that the disclosure tends to show one or more of the matters listed in subparagraphs (a) to (f). Fifthly, if the worker does hold such a belief, it must be reasonably held."

Unless all five conditions are satisfied there will be not be a qualifying disclosure. [9 and 10]

9. There must be a disclosure of information. In **Cavendish Munro Professional Risks Management Ltd v Geduld [2010] IRLR 38**, the EAT held that to be protected, a disclosure must involve giving information and must contain facts, and not simply voice a concern or raise an allegation:

"The ordinary meaning of giving "information" is conveying facts. In the course of the hearing before us, a hypothetical was advanced regarding communicating information about the state of a hospital. Communicating "information" would be "The wards have not been cleaned for the past two weeks. Yesterday, sharps were left lying around". Contrasted with that would be a statement that "You are not complying with Health and Safety requirements". In our view this would be an allegation not information." [24]

10. However, in **Kilraine v London Borough of Wandsworth [2018] ICR 1850** the Court of Appeal held that:

"...the concept of "information" as used in section 43B(1) is capable of covering statements which might also be characterised as allegations. Langstaff J made the same point in the judgment below [2016] IRLR 422, para 30, set out above, and I would respectfully endorse what he says there. Section 43B(1) should not be glossed to introduce into it a rigid dichotomy between "information" on the one hand and "allegations" on the other. ...

On the other hand, although sometimes a statement which can be characterised as an allegation will also constitute "information" and amount to a qualifying disclosure within section 43B(1) , not every statement involving an allegation will do so. Whether a particular allegation amounts to a qualifying disclosure under section 43B(1) will depend on whether it falls within the language used in that provision." [30 and 31].

...

“The question in each case in relation to section 43B(1) (as it stood prior to amendment in 2013) is whether a particular statement or disclosure is a “disclosure of information which, in the reasonable belief of the worker making the disclosure, tends to show one or more of the [matters set out in paragraphs (a) to (f)]”. Grammatically, the word “information” has to be read with the qualifying phrase, “which tends to show [etc]” (as, for example, in the present case, information which tends to show “that a person has failed or is likely to fail to comply with any legal obligation to which he is subject”). In order for a statement or disclosure to be a qualifying disclosure according to this language, it has to have a sufficient factual content and specificity such as is capable of tending to show one of the matters listed in subsection (1). The statements in the solicitors’ letter in the Cavendish Munro case did not meet that standard.

*Whether an identified statement or disclosure in any particular case does meet that standard will be a matter for evaluative judgment by a tribunal in the light of all the facts of the case. It is a question which is likely to be closely aligned with the other requirement set out in section 43B(1), namely that the worker making the disclosure should have the reasonable belief that the information he discloses does tend to show one of the listed matters. As explained by Underhill LJ in *Chesterton Global Ltd v Nurmohamed* [2018] ICR 731, para 8, this has both a subjective and an objective element. If the worker subjectively believes that the information he discloses does tend to show one of the listed matters and the statement or disclosure he makes has a sufficient factual content and specificity such that it is capable of tending to show that listed matter, it is likely that his belief will be a reasonable belief.” [35 and 36].*

...

“It is true that whether a particular disclosure satisfies the test in section 43B(1) should be assessed in the light of the particular context in which it is made. If, to adapt the example given in the Cavendish Munro case [2010] ICR 325, para 24, the worker brings his manager down to a particular ward in a hospital, gestures to sharps left lying around and says “You are not complying with health and safety requirements”, the statement would derive force from the context in which it was made and taken in combination with that context would constitute a qualifying disclosure. The oral statement then would plainly be made with reference to the factual matters being indicated by the worker at the time that it was made. If such a disclosure was to be relied upon for the purposes of a whistleblowing claim under the protected disclosures regime in Part IVA of the 1996 Act, the meaning of the statement to be derived from its context should be explained in the claim form and in the evidence of the Claimant so that it is clear on what basis the worker alleges that he has a claim under that regime. The employer would then have a fair opportunity to dispute the context relied upon, or whether the oral statement could really be said to incorporate by reference any part of the factual background in this manner” [41].

11. It is possible for several communications together to cumulatively amount to a qualifying disclosure even where each communication is not a qualifying disclosure on its own - ***Simpson v Cantor Fitzgerald Europe* [2020] EWCA Civ 1601**. Here the Court of Appeal agreed with the approach of the EAT in ***Norbrook Laboratories (GB) Ltd v Shaw***

UKEAT/0150/13 where it was held that three emails taken together amounted to a qualifying disclosure even where the last email did not have the same recipients as the first two, as the former emails had been embedded in the final email. It will be a question of fact for the tribunal at the final hearing to decide whether two or more communications read together may be aggregated to constitute a qualifying disclosure on a cumulative basis.

12. As regards the Claimant's belief about the information disclosed, the question is whether the Claimant believed **at the time** of the alleged disclosure that the disclosed information tended to show one or more of the matters specified in section 43B(1). Beliefs the Claimant has come to hold **after** the alleged disclosure are irrelevant. Whether at the time of the alleged disclosure the Claimant held the belief that the information tended to show one or more of the matters specified in s.43B(1) and, if so, which of those matters, is a subjective question to be decided on the evidence as to the Claimant's beliefs. It is important for a tribunal to identify which of the specified matters are relevant, as this will affect the reasonableness question.
13. Whereas the test for reasonable belief is a low threshold, it must still be based upon some evidence. Unfounded suspicions, rumours and uncorroborated allegations are insufficient to establish reasonable belief.
14. The belief must be as to what the information **tends** to show, which is a lower hurdle than having to believe that it **does** show one or more of the specified matters. There is no rule that there must be a reference in the disclosure to a specific legal obligation or a statement of the relevant obligations nor is there a requirement that an implied reference to legal obligations must be obvious. However, the fact that the disclosure itself does not need to contain an express or even an obvious implied reference to a legal obligation does not dilute the requirement that the Claimant must prove that she had in mind a legal obligation of sufficient specificity at the time he made the disclosure - ***Twist DX and others v Armes and others*** **UKEAT/0030/30/JOJ**.
15. In ***Darnton v University of Surrey*** [2003] IRLR 133 it was held by HHJ Serota that:

"In our opinion, it is essential to keep the words of the statute firmly in mind; a qualifying disclosure is defined, as we have noted on a number of occasions, as meaning any disclosure of information which in the reasonable belief of the worker making the disclosure tends to show a relevant failure. It is not helpful if these simple words become encrusted with a great deal of authority..." [28] and

"We agree with the learned authors that, for there to be a qualifying disclosure, it must have been reasonable for the worker to believe that the factual basis of what was disclosed was true and that it tends to show a relevant failure, even if the worker was wrong, but reasonably mistaken." [32].

16. The issue of reasonable belief was considered by the EAT in **Korashi v Abertawe Bro Morgannwg University Local Health Board [2012] IRLR 4** where the following example was provided by way of illustration:

“To take a simple example: a healthy young man who is taken into hospital for an orthopaedic athletic injury should not die on the operating table. A whistleblower who says that that tends to show a breach of duty is required to demonstrate that such belief is reasonable. On the other hand, a surgeon who knows the risk of such procedure and possibly the results of meta-analysis of such procedure is in a good position to evaluate whether there has been such a breach. While it might be reasonable for our lay observer to believe that such death from a simple procedure was the product of a breach of duty, an experienced surgeon might take an entirely different view of what was reasonable given what further information he or she knows about what happened at the table. So in our judgment what is reasonable in s.43B involves of course an objective standard – that is the whole point of the use of the adjective reasonable – and its application to the personal circumstances of the discloser. It works both ways. Our lay observer must expect to be tested on the reasonableness of his belief that some surgical procedure has gone wrong is a breach of duty. Our consultant surgeon is entitled to respect for his view, knowing what he does from his experience and training, but is expected to look at all the material including the records before making such a disclosure. To bring this back to our own case, many whistleblowers are insiders. That means that they are so much more informed about the goings-on of the organisation of which they make complaint than outsiders, and that that insight entitles their views to respect. Since the test is their 'reasonable' belief, that belief must be subject to what a person in their position would reasonably believe to be wrong-doing.” [62]

17. As regards the public interest, the Court of Appeal in **Chesterton Global Ltd v Nurmohamed [2017] EWCA Civ 979**, identified the following principles:

- i. There is a subjective element - the Tribunal must ask, did the worker believe, at the time he was making it, that the making of the disclosure was in the public interest?
- ii. There is then an objective element - was that belief reasonable? That exercise requires that the Tribunal recognise that there may be more than one reasonable view as to whether a particular disclosure was in the public interest.
- iii. The necessary belief is simply that the disclosure is in the public interest. The particular reasons why the worker believes that to be so are not of the essence. As per Underhill LJ:

“That means that a disclosure does not cease to qualify simply because the worker seeks, as not uncommonly happens, to justify it after the event by reference to specific matters which the tribunal finds were not in his head at the time he made it. Of course, if he cannot give credible reasons for why he thought at the time that the disclosure was in the public interest, that may cast doubt on whether he really thought so at all; but the significance is evidential not substantive. Likewise, in principle a tribunal might find that the particular reasons why the worker

believed the disclosure to be in the public interest did not reasonably justify his belief, but nevertheless find it to have been reasonable for different reasons which he had not articulated to himself at the time: all that matters is that his (subjective) belief was (objectively) reasonable.”
[29]

- iv. The reference to public interest involves a distinction between disclosures which serve only the private or personal interest of the worker making the disclosure, and those that serve a wider interest.
 - v. It is still possible that the disclosure of a breach of a claimant's own contract may satisfy the public interest test, if a sufficiently large number of other employees share the same interest. In such a case it will be necessary to consider the nature of the wrongdoing and the interests affected, and also the identity of the alleged wrongdoer. These are also referred to as the four factors in **Chesterton**.
18. It is not for the tribunal to determine if the disclosure was in the public interest. Rather the question is:
- i. whether the worker considered the disclosure to be in the public interest;
 - ii. whether the worker believed the disclosure served that interest; and
 - iii. whether that belief was reasonably held.

Breach of a legal obligation

19. As regards legal obligation, in **Boulding v Land Securities Trillium (Media Services) Ltd (2006) UKEAT/0023/06** HHJ McMullen QC held the following:

“The legal principles appear to us to be as follow. The approach in ALM v Bladon is one to be followed in whistle-blowing cases. That is, there is a certain generosity in the construction of the statute and in the treatment of the facts. Whistle-blowing is a form of discrimination claim (see Lucas v Chichester UKEAT/0713/04). As to any of the alleged failures, the burden of the proof is upon the Claimant to establish upon the balance of probabilities any of the following:

(a) there was in fact and as a matter of law, a legal obligation (or other relevant obligation) on the employer (or other relevant person) in each of the circumstances relied on.

(b) the information disclosed tends to show that a person has failed, is failing or is likely to fail to comply with any legal obligation to which he is subject.

“Likely” is concisely summarised in the headnote to Kraus v Penna plc [2004] IRLR 260, EAT Cox J and members:

“In this respect 'likely' requires more than a possibility or risk that the employer (or other person) might fail to comply with a relevant obligation. The information disclosed should, in the reasonable belief of the worker at the time it is disclosed, tend to show that it is probable, or more probable than not that the employer (or other person) will fail to comply with the relevant legal obligation. If the Claimant's belief is limited to the possibility

or risk of a breach of relevant legislation, this would not meet the statutory test of likely to fail to comply.” [24 and 25].

20. In **Eiger Securities LLP v Korshunova [2017] ICR 561**, Slade J held:

“In order to fall within ERA s.43B(1)(b)... the ET should have identified the source of the legal obligations to which the Claimant believed Mr Ashton or the Respondent were subject and how they had failed to comply with it. The identification of the obligation does not have to be detailed or precise but it must be more than a belief that certain actions are wrong. Actions may be considered to be wrong because they are immoral, undesirable or in breach of guidance without being in breach of a legal obligation...”

The decision of the ET as to the nature of the legal obligation the Claimant believed to have been breached is a necessary precursor to the decision as to the reasonableness of the Claimant’s belief that a legal obligation has not been complied with” [46 and 47].

21. Accordingly, whilst the identification of the legal obligation does not need to be precise or detailed, it has to be more than a belief that what was being done was wrong.

Endangerment of health and safety

22. As regards endangerment of health and safety, the term “health and safety” is a generally well understood phrase and it will usually be clear whether the subject matter of a disclosure could fall within its scope. It was confirmed in the case of **Hibbins v Hesters Way Neighbourhood Project [2009] ICR 319**, that the health and safety matter does not necessarily have to fall under the direct control of the employer in order for protection to apply.

23. A disclosure of this nature will require sufficient detail of the perceived risk to health and safety. In **Fincham v HM Prison Service EAT 0925/01** the worker was subjected to a campaign of racial harassment and informed the employer that “I feel under constant pressure and stress awaiting the next incident.” The Employment Appeal Tribunal concluded that this was sufficient to amount to a qualifying disclosure:

“We found it impossible to see how a statement that says in terms “I am under pressure and stress” is anything other than a statement that her health and safety is being or at least is likely to be endangered. It seems to us, therefore, that it is not a matter which can take its gloss from the particular context in which the statement is made. It may well be that it was relatively minor matter drawn to the attention of the employers in the course of a much more significant letter. We know not. But nonetheless it does seem to us that this was a disclosure tending to show that her own health and safety was likely to be endangered...” [30]

Automatic Unfair Dismissal

24. Section 103A of the Employment Rights Act 1996 provides:

Protected disclosure.

An employee who is dismissed shall be regarded for the purposes of this Part as unfairly dismissed if the reason (or, if more than one, the principal reason) for the dismissal is that the employee made a protected disclosure.

25. The statutory question is what motivated a particular decision maker to act as they did – **Kong v Gulf International Bank (UK) Ltd (Protect (the Whistleblowing Charity) intervening) [2022] IRLR 854** [59].
26. The reason or principal reason for the dismissal means the employer's reason. This can be the reason of the dismissing officer, but it may be necessary to look beyond that decision. In **Royal Mail v Jhuti [2019] UKSC 55** (at paragraph 60), the Supreme Court held that where the reason for dismissal is hidden from the decision maker behind an invented reason, it is for the tribunal to look behind the invention rather than to allow it to infect its decision, and provided the invented reason belongs to a person placed in the hierarchy of responsibility above the employee, there is no difficulty attributing that person's state of mind to the employer, rather than that of the decision maker.
27. As regards the burden of proof, in **Kuzel v Roche Products Limited [2008] IRLR 530**, the Court held:

"The tribunal must then decide what was the reason or principal reason for the dismissal of the Claimant on the basis that it was for the employer to show what the reason was. If the employer does not show to the satisfaction of the tribunal that the reason was what he asserted it was, it is open to the tribunal to find that the reason was what the employee asserted it was. But it is not correct to say, either as a matter of law or logic, that the tribunal must find that, if the reason was not that asserted by the employer, then it must have been for the reason asserted by the employee. That may often be the outcome in practice, but it is not necessarily so.

As it is a matter of fact, the identification of the reason or principal reason turns on direct evidence and permissible inferences from it. It may be open to the tribunal to find that, on a consideration of all the evidence in the particular case, the true reason for dismissal was not that advanced by either side. In brief, an employer may fail in its case of fair dismissal for an admissible reason, but that does not mean that the employer fails in disputing the case advanced by the employee on the basis of an automatically unfair dismissal on the basis of a different reason." [59 and 60].

28. A case of whistleblowing dismissal is not made out simply by a "coincidence of timing" between the making of disclosures and the termination of employment - **Parsons v Airplus International Ltd [2017] UKEAT/0111/17** [43].

Interim Relief

29. By section 128(1) Employment Rights Act 1996, an employee who presents a complaint of automatic unfair dismissal pursuant to section 103A may apply to the tribunal for interim relief.

30. Section 129 sets out the procedure to be adopted by the tribunal before considering making such an order.
31. Interim relief can be ordered where the tribunal finds that it is likely that a final hearing will decide that the reason (or principal reason) for dismissal was the employee having made protected disclosures. The test for interim relief applications was initially set out in the decision in the case of **Taplin v Shippam Ltd [1978] ICR 1068 EAT** which at paragraph 23 defined the word “likely” as a “pretty good chance of success”. In **Ministry of Justice v Sarfraz [2011] IRLR 562** it was held at paragraph 16 that the word likely “does not mean simply “more likely than not” — that is at least 51 per cent — but connotes a significantly higher degree of likelihood.”
32. In **Dandpat v The University of Bath and Ors UKEAT/0408/09** the EAT observed that the meaning of the word likely is context specific and it sought to distinguish the meaning of that word in interim relief hearings from its use when, for example, determining whether someone is disabled. It was held at paragraph 20:
- “We do in fact see good reasons of policy for setting the test comparatively high, in the way in which this Tribunal did, in the case of applications for interim relief. If relief is granted the Respondent is irretrievably prejudiced because he is obliged to treat the contract as continuing, and pay the Claimant, until the conclusion of proceedings: that is not consequence that should be imposed lightly.”*
33. Accordingly the standard of proof required is greater than the balance of probability test to be applied at the main hearing.
34. As was noted in **Simply Smile Manor House and others v Ter-Berg [2020] IRLR 97**, the likely to succeed test applies to all elements of the claim.
35. The burden of proof therefore rests with the Claimant to persuade me that it is likely that the tribunal at a final hearing will find that she made the disclosures to her employer; that she reasonably believed that they tended to show one or more of the matters within s. 43B(1) ERA 1996; she reasonably believed that the disclosures were made in the public interest; and the disclosures was or were the principal cause of her dismissal. The EAT in **Sarfraz** referred to a fifth matter, which was the previous requirement for the disclosure to have been made in good faith, however this has since been removed by s. 18 Enterprise and Regulatory Reform Act 2013 and is now relevant only to the matter of compensation.
36. When making a decision on an interim relief application I do not make any formal findings of fact which are intended to be binding at any later stage of the proceedings. I am assessing, amongst other things, the likelihood of disputed facts being proven in the Claimant’s favour at the final hearing. There is only limited material available to a judge on an interim relief application but my decision has to be based on whatever material is available.

Background

37. As I understand from the parties, the Respondent owns and manages public open spaces and the Claimant was employed as an Estates and Facilities Officer at the Respondent's site in Marleigh, Cambridge from 6 December 2021 until the termination of her employment on 2 July 2024.
38. I understand that the site at Marleigh comprises of around 300 new build properties and some community facilities which the Respondent manages in a partnership with Hill Marshall (also referred to as Hill) which is a joint venture between the developer and landowner. Marleigh Estate Management Company Limited ("MEMC") was formed by Hill and has a contract with the Respondent for the delivery of estate services under an Estate Management Contract ("EMC") dated 3 September 2020.
39. I also understand that the Claimant's role included (but may not have been limited to) managing the community centre at Marleigh and she would also act as a point of contact for business partners from Hill and MEMC, and she was also required to raise necessary matters and to maintain service level delivery within budget. Other duties have been referred to but this a general summary of what I understood to be the Claimant's role.
40. The Claimant says that she had previously declined to accept a role with the Respondent because she discovered that she would be dealing with Hill whom she had dealt with before and had a bad experience with. The Claimant says that she was persuaded to take the role and that she would be protected by her line manager(s).
41. The Claimant tells me that there had been an issue with water safety impacting residents in early in 2024 whereby a "do not use water" notice was issued on 18 January 2024 by the water company, and on 22 January a "do not drink" notice was issued, and that this incident was resolved on 24 January 2024. This has been referred to as "the water crisis" by the Claimant.
42. The Claimant says that she brought this to the attention of Mr Carter (the Chief Executive of the Respondent) on 19 January 2024 who she says told her to 'tactically retreat from all things water' and she was told to work from home, however she stayed involved and out of sight so as to not openly disobey his instructions.
43. The alleged whistleblowing features of this claim centre around two alleged disclosures the Claimant says that she made to Mr Carter on 2 February and 8 February 2024.
44. The Claimant says at paragraph 6 of her particulars of claim that she verbally informed Mr Carter of her belief that there was conflict and confusion over roles and responsibilities and that this resulted in there being nobody to take charge during the water crisis.
45. The Claimant tells me that the handwritten and typed version of the notes of those meetings produced by Mr Carter are accurate, although she goes on to say they were not fully complete and did not capture word for word everything that was said. The Claimant says she was raising concerns

about a breach of a legal obligation (the EMC), and secondly the potential health and safety impact of that upon residents, of which the water crisis was an illustration.

46. As to what may have been said, the notes prepared by Mr Carter record that on 2 February the Claimant had said that Hill/Marshall as joint venture were not responding to the community needs that they have; the water crisis is an illustration; and they thought that the Claimant was trouble. This is generally consistent with the Claimant's particulars of claim at paragraph 19. In oral submissions the Claimant informed me that whilst at the time she was under the impression that the failure was of Hill, she now considers that the failure was that of the Respondent which should have known about the water crisis and informed others about it.

47. At paragraph 22 of the Claimant's particulars of claim she deals with the second alleged disclosure of 8 February 2024 where she says that she remained concerned that people may be "dead in their beds" because no-one had been to check on them, and that Mr Carter had told her she was doing too much, to step back, and that he held up the EMC and said that it did not say that she was responsible for people being dead in their beds.

48. I was referred to the copy of the notes of this meeting prepared by Mr Carter, which the Claimant agrees are accurate, and I note that they list the following bullet points:

- *Feeling a bit wired. Juggling. Feeling supported and exposed.*
- *No one knows what's going on apart from me.*
- *Out of control*
- *I can't do the basics of the job*
- *Site walks*
- *Operate centre safely*
- *Bullying and awful nature of Hill/Marshall*
- *No one understanding the remit*
- *Residents and aftermath of water crisis*
- *Hilary feels responsibility to report it*
- *Duty of care*
- *Hill Marshall don't do paperwork etc.*
- *Come up against misogyny*
- *Put in my place*
- *Expose or undermine – not supported*

49. The reference to people being dead in their beds is not listed in that note. The Claimant has invited me to view the two conversations as either protected disclosures in their own right or to view them cumulatively. The Claimant tells me that these alleged disclosures tended to show a long list of matters set out at paragraph 24 of her particulars, in summary they tended to show a breach of a legal obligation (namely the terms of the EMC) and that the health and safety of those living and working at Marleigh had been endangered during the water crisis.

50. The Claimant also says that her disclosures were not made for personal gain, she believed the information was true, and that belief was reasonable. The Claimant provides a long list of reasons why she says that she reasonably believed that the alleged disclosures were in the public interest,

including (but not limited to) that there was a risk of harm to people on other sites due to potential ignorance of contractual obligations, other developments were planned and the lessons learned from the water crisis would be relevant to them; and local residents were paying a service charge to the Respondent and deserved better.

51. The Claimant says that following this the Respondent scabbled around to find reasons to dismiss her, however her arguments were at times complex and contradictory as she made reference to Hill not wanting her there, and finding ways to remove her, much of this allegedly occurring before her alleged protected disclosures were made. The Claimant had also made reference to matters occurring in January 2024, which is before her alleged disclosures, where she said she was in fear of dismissal and that her job was at risk.
52. The Claimant's flow chart produced or relied upon for today's hearing records for 24 to 30 January her feelings that *"No one will engage me. I am in despair. I feel a target on my back"* and on 31 January she recorded *"As a last-ditch effort to avoid being sacked, I reach out to a former director of both Hill and Marshall."* These alleged difficulties with Hill and the Respondent and her feelings that she will be dismissed are recorded by the Claimant as occurring in advance of her alleged protected disclosures.
53. The Claimant's particulars (paragraph 26e) states the Respondent did not know that the root cause of the tension (with the contract parties) was their failure to meet the terms of the EMC and the reason for her removal was that the Respondent knew of no other means by which to release some of the pressure being placed upon it by MEMC to improve the contractual performance, and that they acted in haste at the behest of MEMC in a misguided attempt to reduce their exposure to financial reputational risk.
54. The Claimant's particulars of claim also contain a number of references to matters allegedly occurring in advance of those alleged disclosures. For example "the reason for my dismissal is that my employer undermined my ability to do my job" (paragraph 34). The Claimant also makes references to being consistently upset by censure and confused by criticism from MEMC (paragraph 36), a history of conflict (paragraph 37), and other pressure applied by MEMC (paragraph 38). The Claimant also says in her ET1 that her feeling was that her alleged disclosures "influenced" the Respondent's subsequent decision to dismiss her on 2 July 2024 (paragraph 40).
55. The Claimant has addressed the Respondent's three grounds for dismissing her for misconduct and she tells me that the first ground involving an altercation with a third party contractor (Encore), including an allegation that she made a negative comment about nationality, had been exaggerated and relied upon as an excuse although she accepts that she made a reference to his nationality in order to help her remember him.
56. The Claimant says that the second reason which involved her appointing staff was also an excuse and that she had not hired them as employees, although she accepts that she engaged one person who had recently been dismissed (by another employer), although she disputes that she was not entitled to do so contractually, and she relies upon emergency provisions in

the contract. The Claimant also acknowledges that there was another matter whereby she engaged someone to work with local youths. Whilst the Claimant says that these two people were not employed by her, she acknowledges that there was some expenditure for their time albeit at limited cost.

57. Finally the Claimant addressed the third reason which was that she had committed a data protection breach. The Claimant acknowledges that she sent work material to her home email account, but she suggests that it had been relied upon as an excuse when the Respondent knew that she was mentally unwell and should not have been allowed her to continue to have access her IT after being sent home from work on 19 February 2024 in particular because she says they knew she had been warned previously about the use of her private email account.
58. The Claimant's argument is that these three reasons were simply relied upon as excuses, and that the true reason was due to her protected disclosures, although at the same time she appears to argue that it was due to pressure from Hill or MEMC to remove her.
59. The Claimant spoke at length during the hearing, and whilst much of her oral submissions were directed towards the legal issues for me to decide today, I found her submissions on causation to be difficult to follow as the focus appeared to shift from the Respondent allegedly dismissing her for whistleblowing, to pressure being applied on the Respondent by Hill or MEMC to remove her other reasons.
60. The Respondent submits that the communications of 2 and 8 February were not protected disclosures at all, although the Respondent recognised that depending upon what is said at the final hearing it is possible theoretically that the Claimant's comments of 8 February could amount to protected disclosure, but that at the moment the information currently before the tribunal falls far short of that. The Respondent says that viewing these two communications cumulatively does not alter the position.
61. The Respondent points out that the notes of the conversations between the Claimant and Mr Carter and do not demonstrate any criticism of the Respondent. The criticism is of Hill and as such it is very unlikely that a tribunal will find that the information tended to show that the Respondent was not complying with a legal obligation.
62. The Respondent relies on the reasons why it says it terminated the Claimant's employment (misconduct, breach of trust and confidence, and acting in a manner likely to bring the Respondent into disrepute) and it relies heavily on the difficulties it says the Claimant will face when it comes to causation specifically whether the disclosure or disclosures were the reason or principal reason for her dismissal by Mr Betteley (the Finance Director). Within the witness statement of Mr Betteley he refers to the Respondent conducting a disciplinary investigation and undertaking interviews with witnesses, he says that the water incident was excluded from consideration although the Claimant sought to refer to it, and he looked into whether MEMC wanted to remove the Claimant however he says he was informed by Mr Carter that this was untrue and that they were raising operational concerns. Mr Betteley says that no mention was made of whistleblowing by

anyone when he conducted the disciplinary hearing, and that he was not even aware of the conversation between the Claimant and Mr Carter on 2 and 8 February 2024 so it had no bearing on his decision.

63. The Respondent brings to my attention the references within the Claimant's own ET1 which I have referred to already about the reasons why she says she felt that her employment was terminated, and further it points out that there is an absence of any evidence that Mr Carter passed on to Mr Betteley the information the Claimant says that she gave to him. The Respondent reminds me that for the purposes of causation it is not enough that these alleged disclosures **influenced** the decision to dismiss, they must be the **reason** or the **principal reason**.

Conclusion

64. In coming to my decision, I must take an impressionistic view of the documentary evidence before me, noting that no oral evidence has been given on oath or tested by cross examination. I have therefore carried out a summary assessment of the material before me to form a view as to whether the Claimant is likely to succeed in her claim.
65. I consider that it is unlikely that a tribunal will find that the alleged disclosure of 2 February was a protected disclosure because it appears to me unlikely that the Claimant will persuade the tribunal that the information she says she disclosed tended to show one of the failures the Claimant relies upon. Leaving aside what the Claimant says that she believes now, simply looking at what the Claimant says that she expressed at the time, which is generally consistent with the Respondent's account in the notes and the witness statement of Mr Carter, it is my view that it is not likely that the Claimant will demonstrate that the information tended to show a breach of a legal obligation by the Respondent or the endangerment of health and safety. Whereas tribunals should avoid a rigid dichotomy between allegations and information (**Kilraine**), the information which the Claimant says she disclosed appears to me unlikely to amount to more than a general criticism of the Respondent's contract partner or client, rather than the Respondent itself.
66. The situation is slightly different with respect to what the Claimant says was discussed on 8 February and it appears to me that there is some prospect that the Claimant may be able to demonstrate at a final hearing that the information she says that she was disclosing tended to show either:
- (b) that a person has failed, is failing or is likely to fail to comply with any legal obligation to which he is subject, or*
- (d) that the health or safety of any individual has been, is being or is likely to be endangered,*
67. There is some possibility that some of what is recorded could be found to have been a protected disclosure and whilst these could tend to show one of the failures she relies upon, this would be dependent upon the Claimant's own witness evidence of what was specifically said beyond these very brief bullet points. It also appears to me that it is possible that the Claimant may be able to show that it was reasonable for her to believe that the information

tended to show the failures relied upon, and further that she reasonably believed that these were disclosed in the public interest, but this is dependent upon what information was actually disclosed and whether it contained sufficient factual content and specificity.

68. My summary view therefore is that the Claimant has some prospect of showing that, however I do not consider that it is likely that she will be able to do so. This requires a far higher threshold to be met, and based upon the information before me today, my view is that whilst it **possible** that the Claimant may be able to persuade a tribunal at the final hearing what was disclosed on 8 February amounts to a protected disclosure, I do not find based upon what is before me today that it is **likely** or that there is a **pretty good chance** that she will be able to do so.
69. By way of example there is clear a dispute of fact about whether the Claimant used the expression about finding residents dead in their beds – it is not recorded the Respondent's notes which the Claimant says were accurate, and Mr Carter denies that it was said. In many respects there is a lack of clarity as to what was actually said, and therefore it follows that there is a lack of clarity as to what it tended to show. At present it is not sufficiently clear what was said. Evidence will need to be heard and tested at a final hearing.
70. Having considered both alleged disclosures from 2 and 8 February 2024 together (as per **Norbrook**), this does not alter my impression that the Claimant's is not likely to show that she made a protected disclosure.
71. Leaving aside the issue of whether it is likely that the Claimant will be found to have made a protected disclosure, I would like to address the issue of causation.
72. I am not satisfied to the extent that I need to be from the material before me today (including the oral submissions), that the Claimant will be able to show that the reason or principal reason for her dismissal was that she made a protected disclosure.
73. This is because the material place before me today and the oral arguments fall far short of that. I have in mind the Claimant's own admission that she says that her employment was in jeopardy just before her first disclosure on 2 February, and the Claimant has made numerous references to difficulties of working with Hill previously – she says she initially rejected her role as she had history with them.
74. The Claimant's ET1 claim form also suggests other reasons why she was dismissed, including undermining her role before her disclosures. I also take into consideration that whereas the Claimant challenges the factual premise of two of the Respondent's reasons for dismissing her, she does not dispute the data protection incident occurred. I make it clear that the Claimant has not conceded to me that it amounted to misconduct or that it would have justified dismissal, she has simply been candid and informed me that she sent work material to her home email account, and she has sought to explain the background to that event. I have not interpreted this as a concession, and I am clear that I am making no findings of fact in this hearing.

75. Some of the difficulty I had with the Claimant's arguments on causation was due to what appeared to be the competing reasons why she says she was dismissed. As the Respondent correctly reminds me, it is not sufficient for the disclosure(s) to have been an **influence**, as the legislation requires that they must have been the **reason** or the **principal reason** for dismissal. In this case, based upon what has been presented to me, it appears to me unlikely that even if the Claimant persuades the tribunal at a final hearing that she made one or more protected disclosures, it is not likely that she will persuade that tribunal that what she says she disclosed on 2 and 8 February 2024 to Mr Carter was the reason (or principal reason) for her dismissal by Mr Betteley.
76. I consider that a proper evaluation is required by the tribunal to make findings after hearing all the evidence on the allegations which the Respondent says formed the reasons for the Claimant's dismissal.
77. These documents do not suggest a direct causal link between the alleged disclosures and the dismissal and what was allegedly said on 2 and 8 February 2024. There are clearly factual disputes between the parties.
78. This is not to say that the Claimant will not be able to satisfy the tribunal on the balance of probabilities that the reason or principal reason for her dismissal was because she made protected disclosures. It will be a matter for the final tribunal to determine the veracity of the Respondent's case and only then will it be possible to properly determine the motivation behind the dismissal. However, on the information before me, I cannot say that the final tribunal is likely to find that the reason or principal reason for the dismissal was the alleged disclosures.
79. The application for interim relief is therefore refused.
80. I thank Mrs Bannerman and Mr Perry for their assistance throughout today, including delivering oral and written submissions of such a high quality.

Employment Judge **Graham**

Date 5 September 2024

JUDGMENT & REASONS SENT TO THE PARTIES ON

22 November 2024.....

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FOR THE TRIBUNAL OFFICE

Notes

Reasons for the judgment having been given orally at the hearing, written reasons will not be provided unless a request was made by either party at the hearing or a written request is presented by either party within 14 days of the sending of this written record of the decision.

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Please note that if a Tribunal hearing has been recorded you may request a transcript of the recording, for which a charge may be payable. If a transcript is produced it will not include any oral judgment or reasons given at the hearing. The transcript will not be checked, approved or verified by a judge. There is more information in the joint Presidential Practice Direction on the Recording and Transcription of Hearings, and accompanying Guidance, which can be found here:

<https://www.judiciary.uk/guidance-and-resources/employment-rules-and-legislation-practice-directions/>